

131/2013 on 8 April, 2014

Author: Asim Kumar Ray

Bench: Asim Kumar Ray

8-04-14
em No. 26
AD

C.O. 131 of 2013

Mr. Probal Kumar Mukherjee,
Mrs. Baisali Basu.

... for the petitioner.

Mr. Sabyasachi Bhattacharyya,
Mr. Shehnaz Tareq Mina.

... for the husband.

This revisional application is directed against the order dated December 10, 2012 passed in Matrimonial Suit No. 735 of 2010 by learned Additional District Judge, 1st Court, Hooghly, whereby an application under Section 24 of the Hindu Marriage Act filed by the opposite party/wife was disposed of by directing the petitioner/husband to pay a sum of Rs. 8000/- to the opposite party/wife and Rs. 4500/- to the minor child per month as maintenance pendente lite.

The petitioner as plaintiff has filed a Matrimonial Suit praying for dissolution of marriage. The opposite party/wife has entered appearance and contesting the matter. During pendency of this Matrimonial Suit, the opposite party/wife took out an application under Section 24 of the Hindu Marriage Act which was disposed of by the impugned order giving rise to this revisional application.

Mr. Mukherjee, learned Advocate appearing for the petitioner/husband, invited my attention to the order impugned and has highlighted the findings of the court below whereby the court has calculated the monthly income of the husband to the tune of Rs. 50,000/-. The court has not taken into consideration about the compulsory deductions made from the Gross salary of petitioner. Mr. Mukherjee is fair enough not to challenge the maintenance awarded to the child. He submits that the maintenance awarded to the opposite party/wife may be modified to a little extent diminishing the amount awarded by the learned court below.

Mr. Bhattacharyya, learned Advocate appearing for the opposite party/wife has contended that if monthly income of the husband is taken for argument sake to the tune of Rs. 30,000/-, then the wife may be awarded to the extent of Rs. 10,000/- per month towards maintenance pendente lite. The court has awarded a lesser sum from the date of order instead of from the date of filing the application. The order impugned may not be interfered with.

Perused the revisional application specially the annexure thereto and the order impugned. It appears from the record that at the time of disposal of the

application under Section 24 of the Hindu Marriage Act, the court had the occasion to go through the Income Tax Return of the husband. The income of the husband of the assessment year of 2011-2012 was Rs. 6,12,945/-. The court has expressed that after statutory deduction etc. from the income of the husband gross sum will be around Rs. 50,000/- per month. What sort of statutory deduction was taken into consideration is not specific from the order impugned. If we divide the total sum of Rs. 6,12,945/- by 12 months, then the same will come around of Rs. 51,000/- and odd. The spirit of the order impugned indicates that a sum of Rs. 1000/- and odd was deducted towards the statutory deduction from the gross salary of the husband. The record speaks that the husband took the case that his income per month was Rs. 25,468/- but the same appears to be not founded on substantive evidence. The court has calculated the income of the husband taking of Rs. 50,000/- per month and passed the order impugned.

We are in 2014-15. We may presume that the monthly salary of the husband has been increased by the passage of two years, i.e. from 2011-12. Taking 1/3rd of the income of the petitioner and the aforesaid background in mind, maintenance pendente lite awarded by the learned Court below is not disproportionate to the income of the petitioner. There is no reason to interfere in the order impugned.

The revisional application stands dismissed.

Urgent xerox certified copy of this order, if applied for, be given to both parties expeditiously.

(Asim Kumar Ray, J.)

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